

HOUSE No. 3269

The Commonwealth of Massachusetts

PRESENTED BY:

Marcus S. Vaughn

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act establishing a transferable pediatric cancer research tax credit.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Marcus S. Vaughn</i>	<i>9th Norfolk</i>	<i>1/3/2025</i>
<i>John C. Velis</i>	<i>Hampden and Hampshire</i>	<i>7/8/2025</i>

HOUSE No. 3269

By Representative Vaughn of Wrentham, a petition (accompanied by bill, House, No. 3269) of Marcus S. Vaughn for legislation to establish a transferable pediatric cancer research tax credit. Revenue.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 2970 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act establishing a transferable pediatric cancer research tax credit.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 63 of the General Laws is hereby amended by inserting after
2 section 38J the following section:-

3 Section 38J ½. (a) In addition to any other credit allowed pursuant to this chapter, a
4 pediatric cancer research institution shall be allowed a transferable tax credit for expenditures
5 related to pediatric cancer research. For the purposes of this section, a "pediatric cancer research
6 institution" shall mean a hospital located within the commonwealth that is equipped for, and
7 actively conducting, pediatric cancer research.

8 (b) The total aggregate amount of tax credits allowed pursuant to this section shall not
9 exceed \$10,000,000 in a fiscal year.

10 (c) A pediatric cancer research institution eligible for the this credit may transfer the
11 credits, in whole or in part, to any individual or entity, and the transferee shall be entitled to
12 apply the credits against the tax with the same effect as if the transferee had incurred the
13 expenditures related to pediatric cancer research itself.

14 (d) Any pediatric cancer research institution that receives a credit pursuant to this section
15 for any taxable year may carry over and apply to its tax due for any 1 or more of the next
16 succeeding 3 taxable years the portion, as reduced from year to year, of the credit that exceeds
17 any tax due for the taxable year.

18 (e) The commissioner of revenue may promulgate regulations necessary to carry out this
19 section.

20 SECTION 2. Section 38J½ of chapter 63 of the General Laws is hereby repealed.

21 SECTION 3. Section 1 shall be effective for the taxable year beginning on or after
22 January 1, 2025.

23 SECTION 4. Section 2 shall take effect on January 1, 2033.